Report Date: April 17, 2026
VanRIMS No.: 08-3000-30
Submit comments to the Board

TO: Park Board Chair and Commissioners
FROM: Director, Business Services
SUBJECT: Temporary Seṅáḵw Welcome Centre at Vanier Park

RECOMMENDATIONS

A. THAT, in accordance with the Park By-laws, the Park Board approve a request by Seṅáḵw (Building 1) Limited Partnership (the "Seṅáḵw Partnership" or "SP"), as the representative of Squamish Nation, to place a temporary Welcome Centre in Vanier Park pursuant to the terms of this report.

B. THAT Recommendation A does not become legally binding until the General Manager, Vancouver Board of Parks & Recreation, in consultation with the Director of Legal Services, is satisfied with the following:

i. the Seṅáḵw Partnership and the Park Board have settled the terms of an amended Temporary Workspace Licence Agreement documenting the terms and conditions for the Welcome Centre;

ii. if applicable, the Seṅáḵw Partnership complying with Metro Vancouver's "proximity requirements" whenever construction is proposed to be carried out in proximity to one or more assets owned or operated by Metro Vancouver;

iii. no changes are required to the March 27, 2026, consent letter provided by the Federal Government consenting to the placement of the temporary Welcome Centre in Vanier Park and, if changes to the letter are required based on changes by the Seṅáḵw Partnership to the design, location or duration of the Welcome Centre, the Federal Government provides an amended consent letter to the City, all in accordance with the terms of a 1966 lease by the Federal Government to the City which enabled the creation of Vanier Park; and

iv. any other matter or legal document that may arise in the course of settling any of the above; and

C. THAT the Board determine the licence fee to be imposed for the temporary commercial use of park land for the Seṅáḵw Welcome Centre and, if so [choose one],

   i. a licence fee at market rate per approved policy **OR**

   ii. A reduced rate, with delegated authority to the GM to negotiate, determine the amount or structure of a licence fee below market rate , **OR**

   iii. No fee (Fee Waived)

D. THAT, the General Manager, Vancouver Board of Parks & Recreation, be authorized to negotiate and execute any legal agreement or document that may be necessary, including the above, in order to give effect to these Recommendations.

PURPOSE AND SUMMARY

The purpose of this report is to seek Board direction whether to amend Seṅáḵw Partnership's (SP) existing license relating to a small portion of Vanier Park to allow SP to engage in a commercial use. Under the Park By-Laws, a commercial use requires Board approval. SP intends to place a temporary Welcome Centre immediately adjacent the Seṅáḵw development, at the corner of Chestnut Street and the new Seṅáḵw Lane for prospective residents.

The Board has already licensed to SP the area in question for a different temporary use while it is constructing the Seṅáḵw development; however, the terms of the license do not contemplate a commercial use and would require amendment.

BOARD AUTHORITY / PREVIOUS DECISIONS

Per the Vancouver Charter, the Park Board has exclusive jurisdiction and control over parkland use in the City of Vancouver (including any structures, programs and activities, fees, and improvements within parks) and approves the use of all lands under its jurisdiction on such terms as the Park Board may decide.

For an overview of past In Camera Board decisions and other correspondence related to the Seṅáḵw development, please refer to the Seṅákw Development Overview – Board Briefing Memo dated March 2, 2023

CONTEXT AND BACKGROUND

Seṅáḵw is a residential development project on 10.5-acres of Squamish Nation land located on Kits Point adjacent to Vanier Park. It is taking place on lands under the governance of the Squamish Nation where city land use policies and regulations are not applicable. The development ownership structure is a 50/50 partnership between Squamish Nation and OPTrust (a major Canadian pension fund) for Phases One and Two (under construction). The Nation retains 100% ownership of future Phases Three and Four, with development managed by the Nation's economic development arm Nch'ḵay̓ Development Corporation.

SP has requested approval to temporarily place three adjoined trailers and an external washroom trailer for SP staff use in Vanier Park, at the corner of Chestnut Street and the new Seṅáḵw Lane, for a Welcome Centre (Appendix A). The proposed uses for the Welcome Centre are set out in the Discussion section below.

Since construction of the Seṅáḵw development began, SP has requested the temporary use of relatively small and discrete sections of Vanier Park that are adjacent to the development for purposes including equipment staging, utility access, and construction access. To grant these uses, the Park Board used a standard form Temporary Workspace Licence Agreement ("TWSA"), with agreed modifications to suit the needs of SP and the Park Board. Each time SP was approved for a new use, the TWSA was subsequently amended. The same approach would be used here.

DISCUSSION

The proposed Welcome Centre (Figure 1) will have a canopy design with west coast finishes, including wooden beams representative of Squamish Nation's cultural forms. The building will be elevated above ground with a welcoming open front and side ramp for accessibility.

Figure 1: *Proposed Welcome Centre*

SP advised staff that the Welcome Centre will be used to provide information to the public and that anyone interested in renting a unit would be taken to a different location to begin the leasing process. Staff believe that a key purpose for bringing the public into the Welcome Centre is to promote the benefits of living at the development and that, notwithstanding any formal paperwork or leasing process may be done in a different location, such as marketing or promotional activity sufficiently constitutes a commercial use.

Given the lands are leased to the City by the Federal Government under a 1966 lease, and the Welcome Centre's proposed use falls outside the permitted use of this lease, the City obtained a consent letter from Public Services and Procurement Canada (PSPC) on March 27, 2026 consenting to the temporary installation and use until December 31, 2029. Any changes by the Seṅáḵw Partnership to the design, location and duration of the Welcome Centre from what has been submitted to the City and Park Board may require further consent from the Federal Government and an amendment to this consent letter. If such changes fall outside the scope of what the Board has approved under this report, staff will come back to the Board for further approval.

Business Terms

The primary business terms requiring Board direction through this report relate to the allowable timeframe, the commercial use and the rate charged as discussed in this report.

As for the TWSA, the starting point was the Park Board's standard form and an amendment was made each time SP requested the temporary use of small, discrete areas of Vanier Park in connection with their construction of the Seṅák̲w development. The proposed amendment for the Welcome Centre would apply the same core terms and conditions as follows:;

- a clearly defined scope of permitted use, limited to the approved temporary works and activities;
- Park Board Staff review and approval of detailed designs, drawings, and construction activities in accordance with applicable Park Board and City standards;
- requirements to maintain public safety and minimize impacts on park access throughout the term;
- environmental protection and tree management obligations, including replacement where required;
- full de-commissioning and restoration of the licensed area to Park Board standards at the licensee's sole cost; and
- insurance, indemnification, and performance security requirements, with the Park Board retaining rights to address defaults or terminate the licence if necessary.

Timeframe
Staff recommend aligning the timeframe to that approved by PSPC, which is to allow the Welcome Centre until December 31, 2029. Should SP wish to continue the Welcome Centre beyond that, Board approval, and PSPC approval, would again be needed.

Commercial Use and Rate Charged
Typically, commercial requests for use of park space are charged the market rate – which reflects compensation for the loss of public space as well as the value these spaces represent to the proponents objectives. Based on the proposed commercial use of 3,084 square feet of parkland, three potential rate structures have been identified for consideration. These options reflect varying approaches to balancing market value, operational objectives, and broader public benefit or loss of public benefit (i.e loss of public space). A hybrid structure that incorporates more than one option (e.g. fee waiver in year one, reduced rate in year two, market rate in year three) is also possible.

A. **Market Rate – $25/sf**
Represents the estimated commercial value of parkland, generating approximately $77,100 annually under this proposal.

B. **Reduced Rate – $10/sf**
Reflects a discounted rate consistent with similar community-oriented or partnership arrangements, balancing revenue generation with public or operational benefits, generating approximately $30,840 annually under this proposal.

C. **Fee Waiver – $0/sf**

Full waiver of land lease fees in recognition of broader public, cultural, or strategic value associated with the proposed use.

Under the Vancouver Charter, the Board has authority to determine what rate, if any, to charge for different categories of persons. Examples of different categories could include private entities, non-profits and Indigenous governments. Should the Board view Indigenous governments like Squamish Nation as a distinct category, it can direct staff to charge a lower rate, waive the rate, or some combination over the term of the license. There is no precedent guiding decision-making related to fee setting for this proposal. However, the Board approved Comprehensive Fee-setting Framework provides guidance on setting fees. This approach can be summarized as: those who benefit from a public service should pay in proportion to the benefit received. To the extent that there is direct benefit to the user, that user or user group should pay for that portion of the costs. To the extent that there is indirect benefit to all in the community, taxpayers should pay that portion of the costs.

FINANCIAL CONSIDERATIONS

Staff are seeking direction from the Board which rate option to charge given varying priorities. There is no revenue currently being generated from this space. Revenues collected will be utilized to cover staff costs related to the development of agreements and inspecting the proposed facility construction. There may be an opportunity to direct excess revenues generated from this license in 2026 and beyond; which staff propose be prioritized towards reconciliation initiatives.

OTHER CONSIDERATIONS

Musqueam, Squamish and Tsleil-Waututh Referral

The Welcome Centre proposal was referred to Squamish Nation, Musqueam Indian Band and Tsleil-Waututh Nation on March 18, 2026. No comments have been received to date.

A separate referral was previously issued to all three Nations to initiate a collaborative park planning process for Vanier Park. All three Nations have expressed interest in the planning process. The Vanier Park plan is distinct and separate from work related to the Seṅáḵw Development. This report, regarding the temporary Welcome Centre does not preclude or alter that invitation to all three Nations on broader planning of Vanier Park.

Legal

Section 4(a)(i) of the Park By-Laws provides that “except with the permission of the Board, no person shall, in any park, sell, offer to sell, or expose for sale any food, beverage, or article or thing of any kind”. Staff have concluded that the Welcome Centre will be used for the marketing and promotion of the Seṅáḵw development and that such activity sufficiently constitutes selling or is an activity for which one of the aims is to make a sale.

S.488 of the Vancouver Charter authorizes the Board to determine (1) what fees or rental charges may be imposed on the use of a park, and (2) set different fees and charges for different categories of persons and activities.

CONCLUSION AND NEXT STEPS

The Seṅáḵw Partnership’s proposal involves a limited, temporary use of an already licensed area of Vanier Park to support a Welcome Centre related to the Seṅáḵw development. Given the temporary nature of the building, the existing licensing framework, and federal consent for the proposed use, staff are supportive of the request.

Staff are seeking Board direction on whether to permit the proposed commercial use and on the applicable licence fee. Subject to Board approval, staff will finalize an amendment to the existing Temporary Workspace Licence Agreement for this purpose consistent with the Board’s direction for a term ending December 31, 2029.

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APPENDIX A

PROPOSED SENAKW WELCOME CENTRE

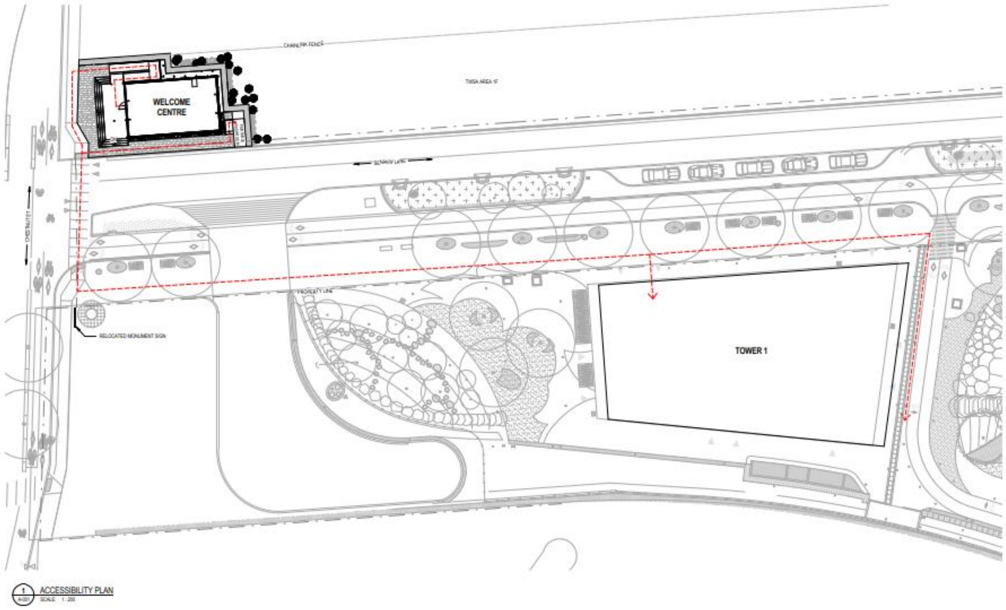

Figure 1: *Site plan showing the proposed location of the Welcome Centre in relation to Tower 1*

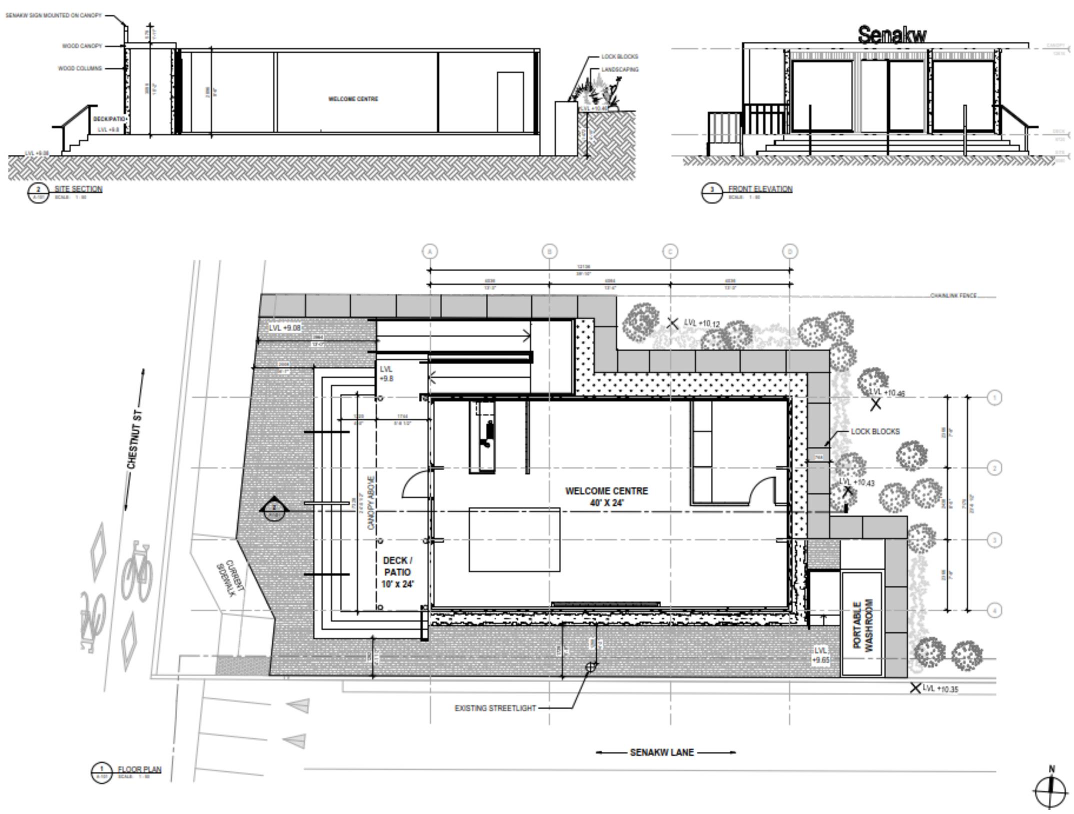

Figure 2: *Floor plan, site section, and front elevation*

PROPOSED CANOPY DESIGN

SQUAMISH CULTURAL FORMS

ELEVATED SEACAN WITH WEST COAST FINISHES

Figure 3: *Proposed exterior canopy design, Squamish cultural forms, and elevated seacan with west coast finishes*

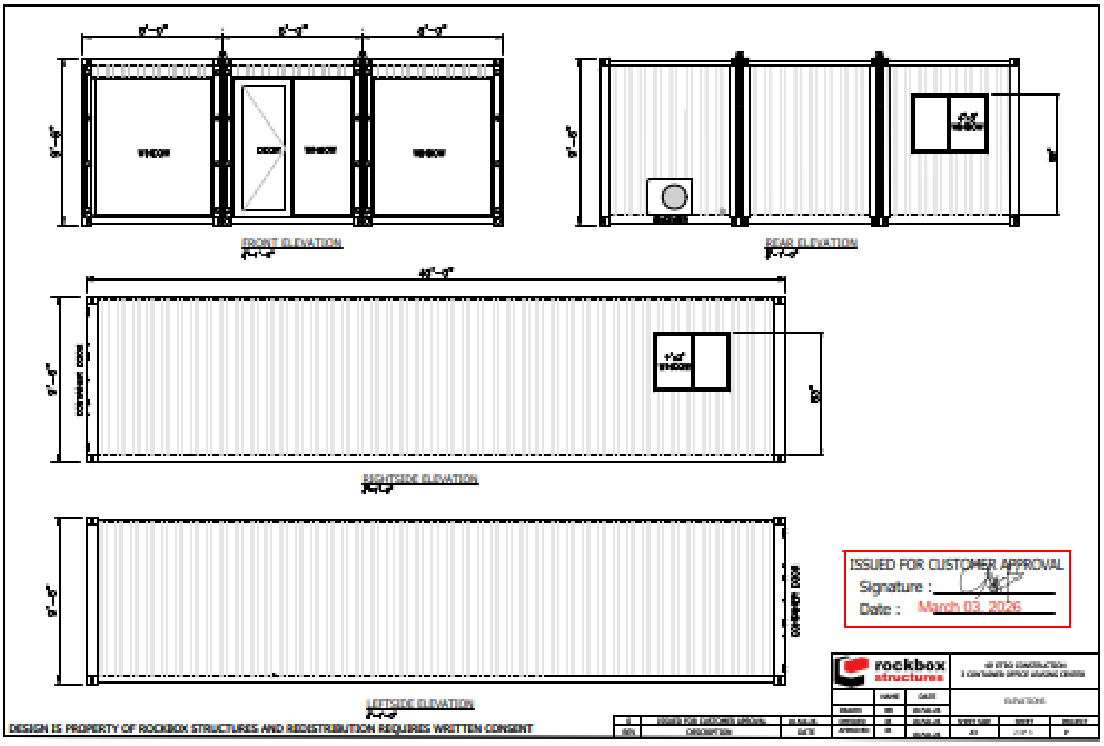

Figure 4: *Front elevation, rear elevation, right-side elevation, left-side elevation*

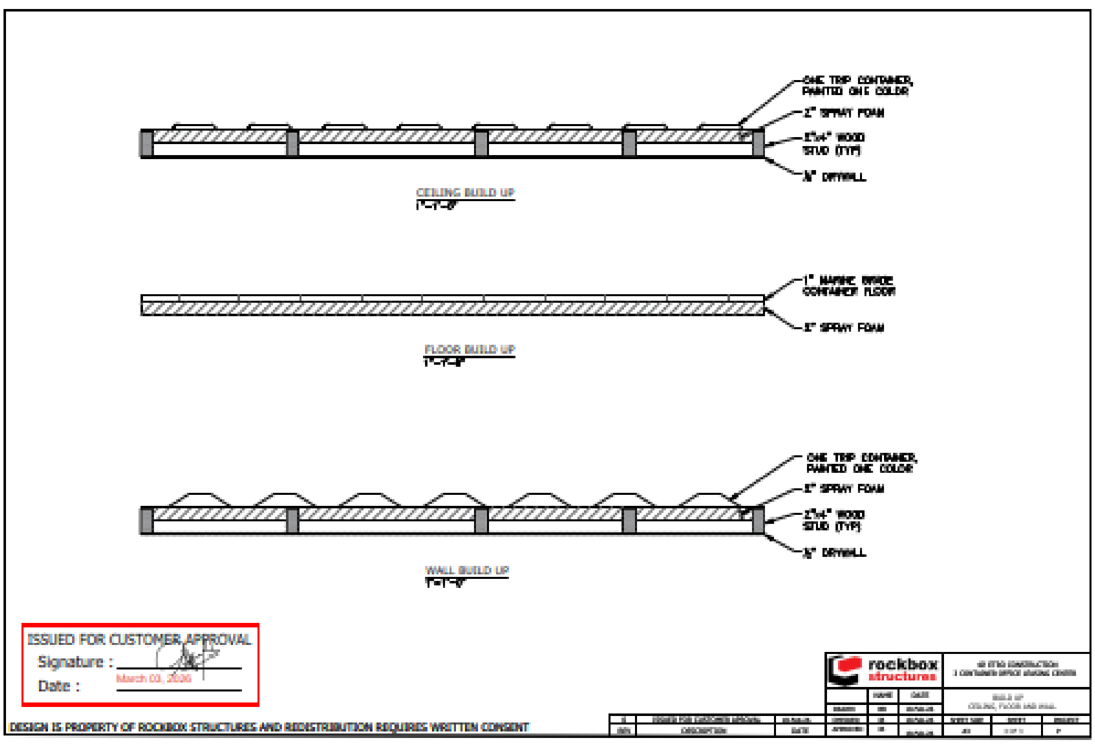

Figure 5: *Ceiling build up, floor build up, wall build up*